REPORTABLE (51)

INNOCENT SITHOLE
v
ZIMBABWE REVENUE AUTHORITY

SUPREME COURT OF ZIMBABWE
MATHONSI JA, CHITAKUNYE JA & KUDYA JA
HARARE: 14 JULY 2026

B. Magogo, for the appellant

S. Bhebhe, for the respondent

KUDYA JA: This is an appeal against the judgment of the Labour Court handed down on 29 August 2025 dismissing the appellant's appeal against the decision of the Appeals Committee of the respondent.

The appellant was employed by the respondent as a Revenue Officer. He was charged with misconduct under Group D25 of the Zimbabwe Revenue Authority Employment Code of Conduct and Grievance Procedure (Employment Code of Conduct). In particular, he was accused of carrying out any act inconsistent with the express or implied conditions of his contract of employment. The facts were that on 24 November 2020 he generated assessment number YI28376 on receipt number R313955 for the collection of warehouse rent for 44 days in the sum of ZWL$5 280 in respect of goods weighing 61.12 tonnes.

In doing so, he undercharged by ZWL$ 157 836, 96. In addition, he was accused of omitting to charge duty, penalties and interest on the goods in question.

The appellant appeared before the Disciplinary and Grievance Committee (DGC) which found him guilty and dismissed him from employment. His appeal to the Appeals' Committee was also unsuccessful. Still unhappy, he appealed to the court *a quo* on five grounds.

The court *a quo* found that the appellant failed to charge and raise penalties as required and that the manner in which he conducted himself was inconsistent with the express and implied terms of his contract of employment. It refused to deal with the ground of appeal relating to mitigation on the basis that it was a review ground as opposed to an appeal one. As a result, it dismissed the appeal.

The appellant noted the present appeal on four grounds. At the hearing, Mr *Magogo* for the appellant abandoned the third ground of appeal. He submitted that, although he had no instructions to abandon the first and second grounds of appeal, he was motivating the appeal essentially on the fourth ground relating to the failure by the internal tribunals to take mitigation.

Our view is that the first and second grounds of appeal have no merit. Apart from being unclear, they do not impugn the evidence that was presented against the appellant which clearly showed that he committed the misconduct complained of. As they were not motivated beyond the heads of argument, which are not helpful, we have no intention to be detained by them any further.

Regarding the third ground of appeal, Mr *Magogo* submitted that, the court *a quo* was obliged in terms of s 12B (4) of the Labour Act *[Chapter 28:01]* (the Act*),* to *mero motu* invite submissions on mitigation given that it has no authority to issue an order for remittal. Having

invited submissions on mitigation, in counsel's view, the court *a quo* should have determined the appropriate penalty.

Per contra, Mr *Bhebhe* for the respondent submitted that the issue of mitigation does not arise. This is so because the ground of appeal placed before the Appeals Committee read as follows:

> "**Penalty**
>
> 3. The penalty of dismissal was too excessive for an employee who did the custom in practice which was prevailing in Zimbabwe Revenue Authority and which was supported by the supervisor whom he was reporting to and took instruction from and also when ASYCUDA World verifications were done on sample Y-assessments that was being done."

Mr *Bhebhe* submitted further that, the issue of mitigation was therefore not before the Appeals Committee whose decision was sought to be appealed against *a quo*. In addition, counsel referred to clause 9.4 of the Employment Code to make the point that the DGC was not enjoined to take submissions on mitigation before assessing a penalty.

He rounded off by submitting that the court *a quo* was correct in concluding that the ground of appeal on mitigation was a review ground which could not be entertained on appeal. In his view, the ground of appeal before the court *a quo* was inappropriate. Firstly, because the issue was not placed before the Appeals Committee and secondly, because it related to s 12B (4) of the Act which was inapplicable.

The ground of appeal before the court *a quo* reads:

> "The Appeals Committee grossly erred and misdirected itself by failing to make a finding that the DGC failed to consider submissions on mitigation in violation of s 12B (4) of the Labour Act [*Chapter 28:01*]."

Section 12B (4) states that:

> "In any proceedings before a labour officer, designated agent or the Labour Court where the fairness of the dismissal of an employee is an issue, the adjudicating authority shall, in addition to considering the nature or gravity of any misconduct on the part of the dismissed employee, consider whether any mitigation of the misconduct avails to an extent that would have justified action other than dismissal, including the view of the employee's service, the employee's previous disciplinary record, the nature of the employment and any special personal circumstances of the employee."

It is the Court's view that there is merit in the submissions made on behalf of the respondent. While we make no pronouncement on whether the Employment Code of Conduct could omit the hearing of mitigation, there is no doubt that the issue of mitigation was not placed before the Appeals Committee. It was not invited to make a determination on it. By the same token, it could not be used as a ground to impugn the decision of the Appeals Committee in the court *a quo*.

The court *a quo* may have side-stepped the question on mitigation by deferring it to review, but its judgment cannot be challenged on the basis of the ground of appeal as worded.

The appeal has no merit. It ought to fail. We take the view that the appellant's persistence, even in respect of the grounds of appeal which he could not sustain, calls for an award of costs against him.

In the result it is ordered that:

"The appeal is dismissed with costs."

MATHONSI JA **:** I agree

CHITAKUNYE JA **:** I agree

Mafongoya & Matapura, appellant's legal practitioner.

Kantor & Immerman, respondent's legal practitioner.